

Justification Review Document
for an Exception to Fair Opportunity – FAR 16.505(b)(2)

Program/Equipment: Installation Management Command G9, Army Community Service,
Family Advocacy Program Family Advocacy Support Services

Authority: Title 10 United States Code (U.S.C.) Section 3406(c)(3) as implemented by
Federal Acquisition Regulation (FAR) Part 16.505(b)(2)(i)(C) – The order must be
issued on a sole-source basis in the interest of economy and efficiency because it is a
logical follow-on to an order already issued under the contract, provided that all
awardees were given a fair opportunity to be considered for the original order.

Amount: [REDACTED]

Prepared By:

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Date: 25 February 2025

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Date Reviewed: 27 February 2025

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Date Reviewed: 28 February 2025

Requirements Representative:

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Title: Army Community Services

Division Chief

E-mail: [REDACTED]

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Date Reviewed: 28 February 2025

Reviews

I have reviewed this justification and find it adequate to support the justification for an exception to fair opportunity.

Army Community Services Division Chief

Typed Name: [REDACTED]

Phone: [REDACTED]

Signature: [REDACTED]

Date: 28 February 2025

Branch Chief, ACC-NJ:

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Phone: [REDACTED]

Signature: [REDACTED]

Date: 04 Mar 2025

Division Chief, ACC-NJ:

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Date: 05 Mar 2025

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Date: 5 March 2025

Associate Director, ACC-NJ:

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Signature: [REDACTED]

Date: 10 March 2025

ACC-NJ Advocate for Competition:

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Phone: [REDACTED]

Signature: [REDACTED]

Date: 10 March 2025

CUI

Control Number: [REDACTED]

ACC-NJ Senior Contracting Official:

[REDACTED]

Phone: [REDACTED]

Signature

[REDACTED]

Date: 11 March 2025

CUI

Justification for an Exception
to Fair Opportunity Under FAR 16.505(b)(2)

1. Contracting Activity: U.S. Army Contracting Command-New Jersey (ACC-NJ)

2. Description of Action: Request approval for a Firm-Fixed-Price bridge modification to extend the term of the Task Order W15QKN-20F-0336, hereinafter “the TO”, by 3-months and add two 1-month options. The TO was awarded under Indefinite Delivery, Indefinite Quantity (IDIQ) Contract W15QKN-19-D-0042 for the provision of Family Advocacy Support Services (FASS) in support of the United States Army Installation Management Command (IMCOM) G9, Army Community Service (ACS), Family Advocacy Program (FAP). The contractor is Magellan Federal, Inc. (Magellan), 2800 Shirlington Road, Suite 350 Arlington, VA. 22206-3601. The Government anticipates award of this modification by 30 March 2025. Fiscal Year (FY) 2025, Army Operations and Maintenance funding are to be provided for this requirement. The total estimated value of the additional five (5) months of services is [REDACTED]

On April 06, 2022, the TO was awarded to Armed Forces Services Corporation doing business as Magellan for the provision of FASS in support of the IMCOM G9, ACS, FAP. Under this TO, the contractor is responsible for providing non-personal, comprehensive services to prevent domestic abuse, child abuse and neglect, and address child on child problematic sexual behavior through advocacy, support and training; in addition, the contractor provides 24/7 victim response, home visitation, hands-on education, case management and accompaniment to court and other appointments as requested. Failure to execute a bridge modification under the TO would result in IMCOM being non-compliant with the multiple DoD and Army policies and regulations. Additionally, failure to extend the services under the TO will have grave impacts by directly impacting Army readiness both at home and overseas.

An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement (DFARS) 207.103(d)(i)(B).

3. Description of Supplies/Services: The Department of Defense and Department of the Army are mandated to provide FASS to supplement Soldier readiness and the well-being of the Army Family. In accordance with (IAW) Army Regulation (AR) 608-18, Army installations will provide services designed to prevent spouse and child abuse by improving family functioning, easing the kinds of stress that can aggravate or trigger patterns of abusive behavior, and create a community that is supportive of families. The services currently being provided under the TO in support of IMCOM’s FAP fulfills this requirement and are an essential part of the Department of the Army’s mission to provide resources that will prevent the kinds of stressors that could lead to abuse within the home. Under this effort, Magellan provides support meeting the requirements of AR 608-18 IAW the tasks identified within the performance work statement (PWS) to Army

Installations both within the Continental United States (CONUS) and outside the Continental United States (OCONUS).

The proposed contract action is for a second extension of services under TO W15QKN-20-F-0336 for three months from 21 March 2025 through 20 June 2025 with the potential to exercise two 1-month option periods to extend service to 20 August 2025 to avoid any break in service and impacts to the IMCOM FAP Mission while the follow-on TO award protest is decided by the General Accountability Office (GAO). The total anticipated dollar value of the extension of services (to include all options) is estimated at \$ [REDACTED]

4. Authority Cited: Title 10 United States Code (U.S.C.) Section 3406(c)(3) as implemented by FAR Part 16.505(b)(2)(i)(C) – The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.

5. Reason for Authority Cited: Pursuant to FAR 16.505(b)(2)(i)(C), when the order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order, competition need not be provided for. All 17 contract holders under the Human Resource Solutions (HRS) 5th Generation Personnel Lifecycle Support (PLS) IDIQ Multiple Award Task Order Contract (MATOC) Suite were given fair opportunity to submit proposals in response to the solicitation for the basic TO award under request for task order proposal (RTOP) W15QKN-20-R-0035, which was issued as unrestricted on 16 January 2020. A total of [REDACTED] proposals were received; upon evaluation of all proposals received IAW the evaluation criteria and the Government's Task Order Evaluation Plan (TOEP), Magellan was selected for award. The TO was awarded on 06 April 2020. Under this TO, the contractor is responsible for providing non-personal, comprehensive services to prevent domestic abuse, child abuse and neglect, and address child on child problematic sexual behavior through advocacy, support and training; in addition, the contractor provides 24/7 victim response, home visitation, hands-on education, case management and accompaniment to court and other appointments as requested IAW the PWS.

To continue services, an unrestricted follow-on TO was solicited on 15 November 2023 to all 17 contract holders under the HRS PLS MATOC. A total of [REDACTED] proposals were received, evaluated in accordance with the stated evaluation criteria and 360 Patriot Enterprises, LLC was selected for award with Task Order award made on 28 February 2024. On 12 March 2024, the Government received two GAO Level Protests. As a result of these protests, and as part of the GAO approved corrective action plan, the Government terminated the Task Order awarded to 360 Patriot Enterprises, LLC.

On 23 May 2024, a new solicitation was issued to all PLS contract holders. During evaluation of the proposals received in response to the new solicitation, unforeseen

circumstances necessitated the approval of a 6-month extension of the TO to ensure continued receipt of the services while the Government amended the PWS and received and evaluated updated proposals. On 22 August 2024, Exception to Fair Opportunity Justification (EFOJ) was approved by [REDACTED] and the period for performance of the TO was extended through 20 March 2025. On 07 February 2025, upon evaluation of all proposals submitted in response to the new solicitation, Magellan Federal, Inc. was awarded the follow-on Task Order.

On 19 February 2025, ACC-NJ was notified of a GAO protest to the award of the follow-on Task Order and, pursuant to FAR 33.104(c)(1) and 52.233-3(a), the Contracting Officer issued a stop work order of the follow-on Task Order. In accordance with FAR 33.104(f), the GAO will have 100 days, or until 30 May 2025, to render a decision on the protest.

In order to ensure IMCOM continues to receive mission critical FASS while awaiting the final decision from the GAO, it is necessary to extend the TO. A three-month bridge with the potential for two additional one-month option periods will afford the Government the necessary flexibility to continue services through the initial protest period. In the event further supplemental protest arguments are filed at the GAO and additional litigation time is required, the Government will have the flexibility of the one month options to ensure services continue.

The proposed modification must be accomplished through an exception to fair opportunity pursuant to the authority cited in paragraph 4 as the Government cannot experience a break in these critical services. Failure to execute a bridge modification under TO W15QKN-20-F-0336 would result in IMCOM being non-compliant with the following policies and regulations: Department of Defense Instruction (DoDI) 6400.01 (Family Advocacy Program); AR 608-18 (The Army Family Advocacy Program); OP-ORD 22-019 (Army FAP Transition to the Incident Determination Committee (IDC)-Clinical Case Staff Meeting (CCSM) Model"); and Army Directive 2021-26 (Transition of the FAP Case Review Committee to the Incident Determination Committee and Clinical Case Staff Meeting).

Additionally, failure to extend the services under the TO will have grave impacts by directly impacting [REDACTED]. Failure to award this modification would result in the following detrimental impacts to IMCOM's FAP mission, the soldier, and civilian dependents:

- a) Failure to comply with New Parent Support Program (NPSP), Domestic Abuse Victim Advocacy (DAVA) Program, and Family Service Support Assistant (FSSA) Program would have severe consequences, potentially leading to mission failure and detrimental effects on the FAP objectives. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] The lack of support services will have a direct impact on soldier performance and mission readiness. Ensuring continuous support helps maintain the morale and focus of service members, which is essential for achieving mission objectives.

b) The NPSP provides crucial support to new and expecting parents, offering resources and guidance that are essential for healthy family dynamics. Any gap in service provision could lead to [REDACTED]

[REDACTED] Additionally, lack of NPSP support will also mean a [REDACTED]

[REDACTED] The immediate and consistent availability of support and intervention services is vital for mitigating these risks and ensuring the safety and security of all children aged zero to three.

c) The DAVA Program addresses issues of domestic abuse, providing immediate intervention and support to affected individuals, which is critical for their safety and well-being. The DAVA Program plays a critical role in preventing and addressing domestic violence within military families. Any gap in service provision could lead to an [REDACTED]

[REDACTED] The immediate and consistent availability of support and intervention services is vital for mitigating these risks and ensuring the safety and security of all family members.

d) The FSSA program supports FAP Managers to implement steps related to ensure compliance with these important statutory requirements. Without FSSA support, the Army is at risk for [REDACTED]

[REDACTED] as noted in Congressional Hearings, Media reports and Government Accountability Office engagements. FSSAs are critical to ensuring the Incident Determination Committee (IDC) - Clinical Case Staff Meeting (CCSM) and Problematic Sexual Abuse - Child Youth (PSB-CY) child and spouse abuse and child on child sexual abuse cases are assessed and managed IAW mandated regulatory guidance.

A proposal will be requested from Magellan for the continuation of services under the extension. It is imperative for the Government to retain the current contractor who already has the specific knowledge, resources, staffing, and expertise in place to continue services without a substantial break in service, virtually eliminating negative impacts to Soldier readiness and the well-being of the Army Family until a competitive follow-on support contract can be awarded.

6. Efforts to Obtain Competition: In accordance with FAR 5.202(a)(6) this action will not be synopsisized as the proposed contract action is a modification to issue a bridge extension to an order placed under subpart 16.5.

a. Effective competition: The Government does not anticipate competition under this effort, as the Government intends to award this modification as a sole source requirement under the existing TO. Competition was sought and obtained at the basic task order level, and at the establishment of the basic IDIQ vehicle.

b. Subcontracting competition: Magellan has certified as a large business and currently has an approved subcontracting plan under contract W15QKN-19-D-0042. Upon the most recently submitted Electronic Subcontracting Reporting System (eSRS) individual subcontracting report, the contractor has identified that [REDACTED] have been subcontracting to small businesses under the subject TO (W15QKN-20-F-0336). The Government will request within its request for proposal that Magellan identify any subcontracting opportunities under this modification for additional work, and if the contractor does not anticipate utilizing small business for subcontracting opportunities, an explanation as to why small business subcontracting is not feasible. Further, the following FAR clauses are applicable and are contained in the PLS MA IDIQ contract to ensure the prime contractor obtains as much competition as possible in its subcontracting efforts: FAR 52.203-6, FAR 52.204-10, FAR 52.244-2, and FAR 52.244-6.

7. Actions to Increase Competition:

As detailed above, the follow-on Task Order for these services has been twice competed amongst the awardees of the HRS PLS MATOC. This non-competitive extension is necessitated only by the GAO protest of the most recent follow-on Task Order award. It is anticipated that any future requirements for these services will be similarly competed.

8. Market Research:

The Government conducted market research in July 2024 n. A request for information (RFI) was issued to the current PLS contract holders on 11 July 2024, to determine contractor capabilities for providing the requested services. [REDACTED] PLS contractors responded to the RFI by the closing date of 15 July 2024. Of those [REDACTED] PLS contractors, [REDACTED] contractors responded with no interest in competing on the effort, and the following [REDACTED] contractors responded and provided capability statements/narratives requested by the RFI.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

The Government received affirmative responses from [REDACTED] contractors as part of market research. However, following evaluation of responses, the Government determined that only the incumbent contractor, Magellan, can successfully perform the entire requirement for the full period of performance.

This mandated effort requires a vendor with the ability to perform the full scope of the requirement (New Parent Support Services, Domestic Abuse Victim Advocate Services, Problematic Sexual Behavior of Children and Youth, and FAP Support Service System).

Given that no transition period would be available to transition a new vendor for this five-month period, the risk of unsuccessful performance is high. The Government does not have a high degree of confidence that a new contractor would have the means to transition approximately [REDACTED] Full Time Employees across [REDACTED] CONUS locations and staff, complete the status of forces agreement (SOFA) requirements for the [REDACTED] OCONUS locations, and successfully perform the PWS requirements with no transition period available.

9. Other Facts:

a. Procurement history.

(1) Contract numbers and dates of the last several contracts for these same requirements:

W15QKN-19-D-0042-W15QKN-20-F-0336: awarded 06 April 2020

W15QKN-20-F-0336-P00009: awarded 09 September 2022

W15QKN-20-F-0336 P00020: awarded 21 September 2024

(2) The competitive status of these actions:

W15QKN-19-D-0042-W15QKN-20-F-0336 awarded under full and open competition amongst all PLS Contract Holders

W15QKN-20-F-0336 P00009 awarded under an exception to full and open competition pursuant to FAR 16.505(b)(2)(i)(C)

W15QKN-20-F-0336 P00020 awarded under an exception to full and open competition pursuant to FAR 16.505(b)(2)(i)(C)

(3) Authority previously cited if less than full and open competition was used:

W15QKN-19-D-0042-W15QKN-20-F-0336: Not Applicable

W15QKN-20-F-0336-P00009 awarded under an exception to full and open competition pursuant to FAR 16.505(b)(2)(i)(C)

W15QKN-20-F-0336-P00020 awarded under an exception to full and open competition pursuant to FAR 16.505(b)(2)(i)(C)

(4) If a justification was prepared to support the procurement made before this one, a summary of the contents of paragraph 7 of the justification for that procurement and an explanation of the results:

W15QKN-19-D-0042-W15QKN-20-F-0336: Not Applicable

W15QKN-20-F-0336 P00009: Reference the justification document, paragraph 7: "At time of TO award, IMCOM could not have reasonably anticipated the required changes issued under the OP-ORD, as these requirements are provided from higher Headquarters, which the FASS program office is mandated to adhere to. To increase competition, it is anticipated that the follow-on requirement for FASS will be competed under the HRS PLS IDIQ MATO contract suite. If the Government determines that Site Coordinator (FSSA) support is a requirement that is needed under any possible follow on efforts, the scope of SC support will be captured in any follow on PWSs."

Reference the follow on competitive TO requirement, the Government's proposed actions have been completed as the additional FSSA labor categories have been captured under the PWS.

W15QKN-20-F-0336 P00020: Reference the previous justification document, paragraph 7: "This is the first instance the authority at FAR 16.505(b)(2)(i)(C) is being utilized to extend the period of performance of the current TO. The initial follow on solicitation and corrective action solicitation provided fair opportunity for all 17 prime contractors on the PLS IDIQ suite."

(5) If any prior contract for this requirement was accomplished using full and open competition, include a detailed explanation of the changed circumstances causing this action to now limit the sources:

TO W15QKN-20-F-0336 was issued as full and open competition under the PLS MA IDIQ Contract Vehicle, as referenced above, current circumstances require an exception to fair opportunity to ensure services continue while the GAO reviewed and provides a decision on protest [REDACTED].

(6) An explanation of any unusual patterns that may be revealed by the history, e.g., several consecutive, urgent buys. Not Applicable

(7) If a justification was prepared to support the procurement made before this one, briefly describe the circumstances justifying the procurement and whether there have been any significant changes. Not Applicable

b. Other facts: Not Applicable

10. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED]

Date: 28 February 2025

Typed Name: [REDACTED]

Title: Army Community Services Division Chief

11. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED]

Date: 28 February 2025

Typed Name: [REDACTED]

Title: Army Community Services Division Chief

12. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable based on utilizing the Independent Government Estimate along with technical and cost analysis procedures in reviewing the contractor's proposal. Further IAW FAR 15.403-4(a)(1) the Contracting Officer will be requiring the contractor to submit certified cost and pricing data with their proposal submittal.

Signature: [REDACTED]

Date: 28 February 2025

Typed Name: [REDACTED]

Title: Contracting Officer ACC-NJ

13. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: [REDACTED]

Date: 28 February 2025

Typed Name: [REDACTED]

Title: Contracting Officer ACC-NJ

Approval

Based on the foregoing justification, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition, I hereby approve of the Firm-Fixed Price bridge modification to extend the term of the Task Order W15QKN-20F-0336 by 3-months and add two 1-month options in support of Installation Management Command, Family Advocacy Program with Magellan, Inc. in the amount of [REDACTED] on an other than full and open competition basis pursuant to the authority of 10 United States Code 3406(c)(3) as implemented in Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(C). The modification must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, and all awardees were given a fair opportunity to be considered for the original order.

[REDACTED]	3/12/2025

Typed Name: [REDACTED]

Title: Senior Contracting Official
Army Contracting Command